

23STCV17641 23STCV17641

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Case Number: 23STCV17641 Hearing Date: September 3, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SARAH WOO, et al.,

Plaintiffs,

vs.

JOON W. KIM, et al.,

Defendants.

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CASE NO.: 23STCV17641

[TENTATIVE] ORDER DENYING MOTION FOR SUMMARY
JUDGMENT

Dept. 506

8:30 a.m.

September 3, 2026

On September 18, 2025, Plaintiffs

Sarah Woo and Sam S. Jung filed a second amended complaint ("SAC") against Defendants
Joon W. Kim, Mal Ye Kim, Sang H. Cho, and CKR Enterprise Inc. The SAC alleges (1) fraudulent conveyance; (2)
fraudulent conveyance and conspiracy to defraud; and (3) declaratory relief re:
invalid deed.

On

June 10, 2026, Defendants filed a motion for summary judgment, or in the alternative,
summary adjudication.

A

jury trial is currently scheduled for October 12, 2026.

PROCEDURAL
CONCERNS

The

Court strikes Defendants' unauthorized August 21, 2026 "Response to Plaintiffs'
Additional Material Facts and Supporting Evidence" and "Response to Plaintiffs'

Evidentiary Objections.” (See Code Civ. Proc., § 437c, subd. (b)(4) [“The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.”].)

On August 28, 2026, Plaintiffs filed an Objection to the Motion as Filed on Behalf of Deceased Defendant Mal Ye Kim. Defendants also filed a response. The Court rejects Defendants’ argument that Plaintiffs waived this objection.

The parties agree that Defendant Mal Ye Kim died on December 4, 2024—over nine months before Plaintiffs filed the SAC, and over eighteen months before Defendants filed this motion. Plaintiffs fault Defendants’ counsel for continuing to represent the decedent without authority—yet Plaintiffs have not yet attempted to continue this action against Defendant Mal Ye Kim’s personal representative or successor in interest.

A cause of action against a decedent that does not abate may be continued against the decedent’s personal representative or successor in interest, “except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made.” (Code Civ. Proc., § 377.41.) Probate Code section 9370 sets forth the conditions that must be satisfied before an action may be continued against the decedent’s personal representative. An action or proceeding pending against the decedent at the time of death may not be continued against the decedent’s personal representative unless (1) a claim is first filed; (2) the claim is rejected in whole or in part; and (3) within three months after the notice of rejection is given, the plaintiff applies to the court for an order to substitute the personal representative in the action or proceeding. (Prob. Code, § 9370, subd. (a).) “No recovery shall be allowed in the action against property in the decedent’s estate unless proof is made of compliance with this section.” (Prob. Code, § 9370, subd. (b).)

Accordingly, an Order to Show Cause Re: Substitution or Dismissal of Deceased Defendant Mal Ye Kim is scheduled for September 28, 2026 at 9:00 a.m., at the Final Status Conference.

SEPARATE STATEMENT

“Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for [summary adjudication] and summary judgment to determine quickly and efficiently whether material facts are undisputed.” (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 335 (United Community Church).) “The separate statement ‘provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.’ [Citation.]” (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 252 (Nazir).) “[I]t is no answer to say the facts set out in the supporting evidence and memorandum of points and authorities are sufficient. ‘Such an argument does not aid the trial court at all since it then has to cull through often discursive argument to determine what is admitted, what is contested, and where the evidence on each side of the issue is located.’” (United Community Church, *supra*, 231 Cal.App.3d at p. 335.) “The due process aspect of the separate statement requirement is self-evident—to inform the opposing party of the evidence to be disputed to defeat the motion.” (Id. at p. 337.)

“The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.” (California Rules of Court, rule 3.1350(d)(2).) The parties should not “include in the separate statement every fact they intend to include in their motion, regardless of its materiality.” (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875 (Beltran).) What a party said or perceived is not a “material fact”; rather, it is evidence of a fact. (Reeves v. Safeway Stores, Inc. (2004) 121 Cal.App.4th 95, 106 (Reeves).) “The paragraphs in a separate statement should be limited to facts that address the elements of a cause of action or an affirmative defense. (See Code Civ. Proc., § 437c, subd. (b)(1); rule 3.1350(a)(2), (d)(2).) The statute and Rules of Court do not preclude litigants from including background, nonmaterial information in their papers as long as they include a cite to the evidence, but nonmaterial facts should not be included in the separate statement. The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them.” (Beltran, *supra*, 97 Cal.App.5th at p. 875.)

“[A] document that was intended to be helpful to the court and provide due process to the parties [citation] is, in many cases, no longer

serving either purpose.” (Beltran, supra, 97 Cal.App.5th at p. 874.) The separate statement here does not serve its intended purpose. Some of Defendants’ 49 facts are unnecessary and are not, in fact, material to the claims or defenses.

It is unnecessary to include the SAC’s allegations as “facts”. (UMF 7-10, 13-17, 23, 25-27, 32, 34, 38-40, 42, 46.) The Court’s rulings on certain matters, such as demurrers, are not material to the issues raised in this motion. (See UMF 21.) Whether Defendants “preserve this defense through the [Number] Affirmative Defense” is not material. (UMF 35, 41, 45, 49.) The inclusion of other “material facts,” such as UMF 33, is even more puzzling and out of place: “In meet-and-confer correspondence dated October 10, 2025, Plaintiffs’ counsel declined to dismiss the Second Cause of Action as to Cho and CKR, stating that the SAC’s allegations sufficiently pleaded Cho and CKR’s knowledge, intent, and overt acts.”

“[T]rial courts have the inherent power to strike proposed ‘undisputed facts’ that fail to comply with the statutory requirements and that are formulated so as to impede rather than aid an orderly determination whether the case presents triable material issues of fact. If such an order leaves the required separate statement insufficient to support the motion, the court is justified in denying the motion on that basis.” (Reeves, supra, 121 Cal.App.4th at p. 106.)

Although the Court will not strike portions of the separate statement here, all counsel are cautioned to include only facts that are truly material to the motion.

REQUESTS
FOR JUDICIAL NOTICE

Defendants’
and Plaintiffs’ Requests for Judicial Notice are granted.

EVIDENTIARY
OBJECTIONS

Plaintiffs’

Evidentiary Objection No. 1 is sustained as hearsay.

Defendants'

Evidentiary Objections Nos. 1-3 are overruled.

BACKGROUND

FACTS

On

September 6, 2018, a default judgment was entered in favor of Plaintiffs against Defendant Joon W. Kim in the amount of \$704,694.28 in Case No. BC687833 (the "Underlying Lawsuit"). (Undisputed Material Facts "UMF"

1.) The Abstract of Judgment was recorded in the Official Records of Los Angeles County on June 22, 2020. (UMF 6.)

The

2021 Grant Deed conveying Defendant Joon Woo Kim's interest in the Montebello Property to Defendant Mal Ye Kim was recorded in the Official Records of Los Angeles County on November 15, 2021. (UMF 5.)

Plaintiffs

allege that before the Underlying Lawsuit's judgment was entered, Defendants transferred various assets to each other in an effort to make the judgment uncollectable. (See, e.g., SAC ¶¶ 28, 30, 33-34.)

DISCUSSION

For

each claim in the complaint, the defendant moving for adjudication must satisfy the initial burden of proof by showing that one or more elements of a cause of action cannot be established or that there is a complete defense to a cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520 (*Scalf*.) Then the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf*, supra, 128 Cal.App.4th at p. 1520.) To establish a triable issue of material fact, the party opposing the motion must produce "substantial responsive evidence." (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162-163.)

A. Plaintiffs' Claims Are Not Time-Barred.

The

first cause of action alleges fraudulent conveyance with respect to the 2021 Grant

Deed for the Montebello Property, and the third cause of action seeks a judicial declaration about the same. The second cause of action alleges fraudulent conveyance and conspiracy to defraud, based on a series of transfers between February 2014 and March 2020.

Defendants

argue that the Uniform Voidable Transactions Act (“UVTA”) statute of limitations bars all causes of action. (Motion at pp. 10-16.) According to Defendants, Plaintiffs had both constructive and inquiry notice as of the November 15, 2021 recordation of the deed, and “[t]he one-year period under Civil Code section 3439.09, subdivision (a)(2) ran from that date and expired November 15, 2022 — eight months before the July 27, 2023 filing.” (Id. at p. 12.) Plaintiffs also possessed complete bank records for all transfers by December 2020. (Id. at p. 15.)

A

cause of action is extinguished unless it is brought “not later than four years after the transfer was made or the obligation was incurred or, if later, not later than one year after the transfer or obligation was or could reasonably have been discovered by the claimant.” (Civ. Code, § 3439.09, subd. (a).)

Plaintiffs

timely filed this action less than four years after the alleged fraudulent transfers. The one-year discovery deadline applies only if the discovery occurred later than four years after the transfer.

In

reply, Defendants argue that even if the Court accepts “Plaintiffs’ reading” of the limitations period, the absolute seven-year cutoff also applies. (Reply at pp. 2, 4-5; see Civ. Code, § 3439.09, subd. (c).) This was not raised in the Notice of Motion and the moving papers. Regardless, Defendants urge that “any UVTA theory based on a transfer made or obligation incurred before July 27, 2016 is extinguished.” (Reply at p. 5.) Plaintiffs similarly argued that the four-year limitations period bars all pre-July 2019 transfers. (Motion at pp. 16-17.) But that does not “completely dispose[] of a cause of action” when the second cause of action is based on a series of transfers through

March 2020. (Code Civ. Proc., § 437c, subd.

(f)(1).)

Summary

adjudication is denied.

B. Defendants Have Not Met Their Burden Regarding

Plaintiffs' Lack of Evidence.

For

the second cause of action, Defendants argue that Plaintiffs "have identified no date, communication, meeting, directive, or overt act by Cho or CKR — as distinct

from Joon Kim — taken in furtherance of any alleged common design." (Motion at p. 21; see id. at pp. 17-22.) According to Defendants, "Plaintiffs' discovery

responses establish they have no evidence of an agreement." (Id. at p. 21.) To succeed on this argument, Defendants must "present

evidence that the plaintiff does not possess, and cannot reasonably obtain, needed

evidence—as through admissions by the plaintiff following extensive discovery to

the effect that he has discovered nothing."

(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 855.)

Although

"a moving defendant may rely on factually devoid discovery response to shift the

burden of proof" (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573,

590), Plaintiffs' discovery responses are not sufficient evidence here. As Plaintiffs

note, their discovery responses were served on September 7, 2024, when the First

Amended Complaint was the operative pleading.

(Opposition at p. 3; Rios Decl. ¶ 3 & Ex. 6.) The now-operative SAC was not filed until a year

later, and Defendants have not propounded additional discovery or taken Plaintiffs'

depositions. (Ojeda Decl. ¶¶ 8-10.) Under these circumstances, Defendants have not

met their burden of showing that Plaintiffs do not currently have or cannot obtain

the necessary evidence.

Defendants

provide no other evidence to dispose of Plaintiffs' request for punitive damages.

(Motion at pp 23-24.)

Summary

adjudication is denied.

CONCLUSION

The
motion is DENIED.

The
Court STRIKES Defendants' unauthorized August 21, 2026 "Response to Plaintiffs'
Additional Material Facts and Supporting Evidence" and "Response to Plaintiffs'
Evidentiary Objections."

An
Order to Show Cause Re: Substitution or Dismissal of Deceased Defendant Mal Ye Kim
is scheduled for September 28, 2026 at 9:00 a.m., at the Final Status Conference.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 3rd day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court